

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Max Bernstein	Team: Team # 3	CCRB Case #: 201114594	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 11/03/2011 4:11 PM	Location of Incident: § 87(2)(b)		18 Mo. SOL 5/3/2013		Precinct: 77
Date/Time CV Reported Fri, 11/04/2011 1:06 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 11/07/2011 3:56 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Vincent Lam	25892	949193	PBBN
2. SGT Juan Moreno	03602	935351	PBBN

Officer(s)	Allegation	Investigator Recommendation
A . SGT Juan Moreno	Discourtesy: SGT Juan Moreno spoke obscenely to § 87(2)(b)	A . Unsubstantiated
B . SGT Juan Moreno	Abuse: SGT Juan Moreno refused to provide his name and shield number to § 87(2)(b)	B . Unsubstantiated
C . SGT Juan Moreno	Abuse: SGT Juan Moreno searched the car in which § 87(2)(b) was an occupant.	C . Exonerated
D . POM Vincent Lam	Abuse: PO Vincent Lam searched the car in which § 87(2)(b) was an occupant.	D . Exonerated

Case Summary

On November 4, 2011, § 87(2)(b) filed this complaint with the Internal Affairs Bureau (IAB) via telephone. On November 7, 2011, IAB forwarded this complaint to the CCRB via log number 11-51118.

On November 3, 2011, § 87(2)(b) was stopped near the intersection of § 87(2)(b) and § 87(2)(b) by Sergeant Juan Moreno and Officer Vincent Lam of Patrol Borough Brooklyn North. § 87(2)(b) was subsequently arrested, and the following allegations resulted from the incident:

- **Allegation A: Discourtesy—SGT Juan Moreno spoke obscenely to § 87(2)(b)**
§ 87(2)(b)
Allegation B: Abuse of Authority—SGT Juan Moreno refused to provide his name and shield number to § 87(2)(b)

§ 87(2)(g)

Therefore, it is recommended that **Allegations A and B** be closed as *unsubstantiated*.

- **Allegation C: Abuse of Authority—SGT Juan Moreno searched the car in which § 87(2)(b) was an occupant.**
Allegation D: Abuse of Authority—PO Vincent Lam searched the car in which § 87(2)(b) was an occupant.

§ 87(2)(g)

Therefore, it is recommended that **Allegations C and D** be closed as *exonerated*.

Results of Investigation

Civilian Statement

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) at the time of the incident. He is a Hispanic male § 87(2)(b) and has black hair and brown eyes. § 87(2)(b)

On November 15, 2011, § 87(2)(b) provided a telephone statement (encl. 7) and on December 1, 2011, § 87(2)(b) provided an in-person CCRB statement (encl. 8A-E). § 87(2)(g)

On November 5, 2011, at approximately 4:00pm, § 87(2)(b) was driving his 2003 charcoal black GMC Yukon XL from a car repair shop back to his apartment. § 87(2)(b) was driving Westbound on § 87(2)(b) when he noticed a parking spot between § 87(2)(b) and § 87(2)(b). A delivery truck was blocking the parking spot, so § 87(2)(b) double parked behind the truck with his two front windows rolled down, and his back windows rolled down half way. § 87(2)(b) indicated that § 87(2)(b) is a two way street, with one lane of parked cars and one

lane of moving traffic going each way. § 87(2)(b) noted, however, that there is enough room in the lane of traffic for two cars to pass, and his double parking was not obstructing traffic.

As he was waiting in his truck, § 87(2)(b) saw a marked RMP driving eastbound on § 87(2)(b). The officers inside of the vehicle were issuing tickets to double parked cars. After the RMP drove past § 87(2)(b) it made a U-turn and pulled up one to two car lengths behind § 87(2)(b). The officers remained in their vehicle for a few seconds, and § 87(2)(b) believed that the officers wanted him to drive away. § 87(2)(b) wanted to explain that he was waiting for the parking spot, so he exited his vehicle so that he could speak with the officers. Once § 87(2)(b) exited his truck, the driver of the RMP, identified through investigation as Officer Lam, yelled at § 87(2)(b) to get back into his vehicle. Without saying anything, § 87(2)(b) got back into his vehicle and sat down. Officer Lam and another officer (identified through investigation as Sergeant Moreno) exited the RMP and approached § 87(2)(b)'s vehicle. Sergeant Moreno approached the driver's side and Officer Lam approached the passenger's side.

Sergeant Moreno immediately asked § 87(2)(b) "what's going on here." § 87(2)(b) explained that he was waiting for a parking spot, and that he just spoke with the delivery truck driver who stated that he would be leaving the spot soon. Sergeant Moreno replied "You got pulled over because your tints are too dark." This statement confused § 87(2)(b) and he stated "How am I getting pulled over? I was waiting for a spot. I was already stopped." Sergeant Moreno responded "shut the fuck up." § 87(2)(b) was baffled by this statement, and told the sergeant that there was no reason to speak to him like that. Sergeant Moreno then asked for § 87(2)(b)'s license and registration. § 87(2)(b) told the officers he would provide the information, but qualified it by noting that the truck is in his mother's name, but he is registered as the driver on the insurance. Sergeant Moreno then stated "the truck is probably stolen anyway."

Sergeant Moreno pulled out a tint reader, and told § 87(2)(b) to roll up his front window. This prompted § 87(2)(b) to ask Sergeant Moreno, "If you said you pulled me over for tints, what color tints are my front windows?" Sergeant Moreno again replied "Shut the fuck up. You're being a smart-ass." Sergeant Moreno proceeded to use the tint reader on § 87(2)(b)'s back windows which were halfway up. After Sergeant Moreno read the tints, he stated "17%, that's illegal." § 87(2)(b) is under the belief that there is no law restricting rear window tints, and he stated this to Sergeant Moreno, which prompted the Sergeant to say "I make the fucking law, I tell you what's legal and what's not." Shortly after this statement, § 87(2)(b) asked Sergeant Moreno for his name and badge number. Sergeant Moreno turned his body so that § 87(2)(b) could not see his nameplate and badge. § 87(2)(b) asked Sergeant Moreno for his information again, but this time Sergeant Moreno opened the car door and grabbed § 87(2)(b)'s arm. § 87(2)(b) pulled his arm back towards his body, and stated "no need to grab me, if you want me to get out of the vehicle, I will." Sergeant Moreno instructed § 87(2)(b) to get out of the vehicle, and § 87(2)(b) complied. As § 87(2)(b) turned around to close the door behind him, Sergeant Moreno grabbed his arm so that he could not. § 87(2)(b) asked Sergeant Moreno if he was being placed under arrest and Sergeant Moreno told § 87(2)(b) to shut up. § 87(2)(b) stated "If you're arresting me, let me know. I will put my arms behind my back." Sergeant Moreno ignored § 87(2)(b). § 87(2)(b) turned him around and placed him in handcuffs. § 87(2)(b) repeatedly asked Sergeant Moreno and Officer Lam what he was being arrested for, but did not get a response.

Sergeant Moreno did state "You're under arrest, do you have anything you shouldn't have." § 87(2)(b) told the officers that he did have a pocket knife on him that he described as a work knife. Sergeant Moreno put his hand into § 87(2)(b)'s pocket and removed the knife. Sergeant Moreno

stated “This is illegal possession of a weapon, you are under arrest.” § 87(2)(b) was placed under arrest for § 87(2)(b) and taken to the back seat of the RMP, and then both officers began to search the vehicle. § 87(2)(b) told the officers that they did not have permission to search his vehicle, but they ignored him and continued searching. Since § 87(2)(b) was in the back of the RMP, he could not see what the officers were doing, but stated that both officers went inside of his truck. The officers opened the back doors and Officer Lam opened the rear hatch.

Following the search, Officer Lam told § 87(2)(b) that they would have to drive the vehicle back to the station house. § 87(2)(b) told the officers that his mother was in her apartment right around the corner, and asked if she could park the car for him. Both officers told him to shut up. Two more uniformed officers arrived on foot, and transported § 87(2)(b) to the station house. § 87(2)(b) indicated that his car was transported to the station house as well.

Once inside of the station house, § 87(2)(b) saw Officer Lam and Sergeant Moreno. § 87(2)(b) asked Sergeant Moreno for his name again, but Sergeant Moreno ignored § 87(2)(b)'s requests.

NYPD Statements:

Subject Officer: PO VINCENT LAM

- Officer Lam was § 87(2)(b) old at the time of the incident. He is an Asian male, § 87(2)(b), and has black hair and brown eyes.
- Officer Lam was assigned to be Sergeant Moreno's operator, assigned to marked RMP#5318, dressed in uniform, and worked from 1:30pm until 10:05pm on November 3, 2011.

Memo Book (encl. 9A-D):

At 4:00pm, Officer Lam noted a car stop for tints and obstructing vehicular traffic on § 87(2)(b) (westbound) and § 87(2)(b). At 4:05pm, Officer Lam recorded a frisk, resulting in the discovery of a gravity knife on § 87(2)(b). He also noted § 87(2)(b)'s vehicle information and that he had tints in which 27% of light was transmitted through. At 4:11pm, § 87(2)(b) was placed under arrest, and at 4:13pm, Officer Lam arrived at the 77th Precinct station house with § 87(2)(b). At 7:45pm, he released § 87(2)(b) with Desk Appearance Ticket § 87(2)(b).

OLBS (encl. 15A-B):

§ 87(2)(a) 160.50
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

Desk Appearance Ticket § 87(2)(b) (encl. 10):

§ 87(2)(a) 160.50
§ 87(2)(b)

CCRB Statement:

On March 1, 2012, Officer Lam provided an in-person CCRB statement (encl. 11A-B) which is summarized below.

On November 2, 2011, at approximately 4:00pm, Officer Lam and Sergeant Moreno observed a vehicle double parked near the intersection § 87(2)(b) and § 87(2)(b). The vehicle had window tints and Officer Lam stated that the back window tints looked too dark, so they

stopped the individual inside of the car. Officer Lam stated that he believed the vehicle was a black Chevy Suburban, but he was not sure. Officer Lam added that he was not sure if the front windows were rolled up or down when he first noticed § 87(2)(b)'s vehicle.

Sergeant Moreno and Officer Lam turned on their flashing lights and pulled up behind § 87(2)(b). The officers approached the vehicle, Sergeant Moreno to the driver's side and Officer Lam to the passenger's side. Sergeant Moreno asked § 87(2)(b) to roll up his front window in order to check the tints, but § 87(2)(b) would not comply. Officer Lam could not recall exactly how § 87(2)(b) was being noncompliant, but stated that § 87(2)(b) was acting "hostile." Officer Lam did not recall if § 87(2)(b) ever rolled his front windows up, and he added that § 87(2)(b) was not doing anything with his body while speaking to the officers. Officer Lam used a tint reader on the back windows, and deemed that the tints were illegal. Officer Lam stated that at no point did Sergeant Moreno tell § 87(2)(b) to "shut the fuck up," and at no point did he say "I make the fucking law. I'll tell you what's legal and what's not."

Since § 87(2)(b) was not being compliant, Sergeant Moreno asked him to step out of the vehicle. This directive was ordered about one minute into the interaction. Once § 87(2)(b) had gotten out of the vehicle, Sergeant Moreno asked him if he was in possession of any weapons. § 87(2)(b) volunteered that he had a knife in his pocket. Sergeant Moreno proceeded to frisk § 87(2)(b) at which point he discovered an illegal knife on his person. Officer Lam noted that since the car was so large, he did not see the frisk take place, and was not sure where the knife was discovered. Officer Lam vouchered the knife, but he couldn't remember any details of the weapon, other than it was illegal.

Officer Lam walked around the vehicle and handcuffed § 87(2)(b) and brought him to the RMP and transported him to the station house. § 87(2)(b)'s vehicle was left at the scene, and two other officers on foot patrol arrived and brought § 87(2)(b)'s car back to the station house, but they arrived after Officer Lam had already left the scene. Officer Lam did not know which officers came and took § 87(2)(b)'s vehicle back to the station house. Officer Lam stated that no inventory search of § 87(2)(b)'s vehicle was conducted. He indicated that a family member of § 87(2)(b) came to the station house and picked up the vehicle shortly after it was impounded.

Officer Lam noted that at no point did § 87(2)(b) ask either officer for their names and badge numbers. As a result, Sergeant Moreno never refused to provide his name and badge number, and never turned his body away from § 87(2)(b).

Subject Officer: SGT JUAN MORENO

- *Sergeant Moreno was § 87(2)(b) old at the time of the incident. He is a Hispanic male, who § 87(2)(b), and has brown hair and brown eyes.*
- *Sergeant Moreno was assigned to be the Impact Sergeant, worked with Officer Lam, was assigned to marked RMP# 5318, was dressed in uniform, and worked from 2:00pm until 10:12pm on November 3, 2011.*

Memo Book (encl. 12A-C):

At 3:45 pm, Sergeant Moreno conducted a car stop at § 87(2)(b) and § 87(2)(b)

At 4:11pm, Sergeant Moreno arrested § 87(2)(b)

CCRB Statement:

On March 23, 2012, Sergeant Moreno provided an in-person CCRB statement (encl. 13A-B).

§ 87(2)(g)

On November 3, 2011, § 87(2)(b)'s vehicle was stopped because it was double parked. Sergeant Moreno approached the vehicle on the driver's side and told the driver, § 87(2)(b) that he had to move his car. § 87(2)(b) stated that he was not going to move his car. Sergeant Moreno told § 87(2)(b) that if he did not leave the spot he would be issued a summons. § 87(2)(b) responded, "I don't care." Sergeant Moreno repeatedly told § 87(2)(b) that he had to leave, but § 87(2)(b) would not comply. § 87(2)(b) began to use profanities, and asked Sergeant Moreno "Why the fuck are you stopping me?"

Sergeant Moreno asked § 87(2)(b) for the vehicle's paperwork. § 87(2)(b) told Sergeant Moreno that he would not provide the paperwork, as the car was not his. § 87(2)(b) indicated that the car belonged to either a friend or a family member, but Sergeant Moreno could not specifically recall whose car it was. After approximately five to seven minutes of trying to get § 87(2)(b) to either move his vehicle or provide the vehicle's registration, Sergeant Moreno decided that he would probably arrest § 87(2)(b) for OGA. Sergeant Moreno asked § 87(2)(b) to exit his vehicle, but § 87(2)(b) did not comply. Instead, § 87(2)(b) asked why he had to and Sergeant Moreno explained that since § 87(2)(b) refused to move his car and since he would not provide any of the vehicle's paperwork, he needed to exit the vehicle. § 87(2)(b) refused, but after multiple requests, § 87(2)(b) exited the vehicle on his own accord. Sergeant Moreno did not pull § 87(2)(b) out or assist him in exiting the vehicle. At no point did Sergeant Moreno tell § 87(2)(b) to "shut the fuck up," or tell him "I make the fucking law."

As § 87(2)(b) opened the door to exit his car, Sergeant Moreno noticed that there was a gravity knife in plain view on top of the center console. Sergeant Moreno could not remember any specific characteristics of the knife, but he recalled that the knife was illegal. Sergeant Moreno did not make it known that he saw the knife right away. First, he called Officer Lam over, who had been on the passenger's side of the vehicle up until this point. Sergeant Moreno proceeded to frisk § 87(2)(b) once he got out the vehicle. § 87(2)(b) did not have anything on him, so no search was conducted. Sergeant Moreno again asked § 87(2)(b) if the vehicle was his, and § 87(2)(b) reiterated that it was not. Sergeant Moreno then asked § 87(2)(b) if the knife was his, and § 87(2)(b) confirmed that it was. Sergeant Moreno then placed § 87(2)(b) under arrest for § 87(2)(b).

After § 87(2)(b) was placed in handcuffs, he asked Sergeant Moreno for his name and badge number. Sergeant Moreno pulled out his badge and nameplate, and read the information to § 87(2)(b). § 87(2)(b) began to make threats, and told Sergeant Moreno that he would file a complaint against him. Shortly thereafter, another RMP arrived at the scene to transport § 87(2)(b) to the station house. Sergeant Moreno could not recall who these officers were. Sergeant Moreno drove his RMP back to the station house, and he believes Officer Lam took § 87(2)(b)'s vehicle to the station house. Sergeant Moreno indicated that § 87(2)(b)'s vehicle was brought back so that it would not be summonsed or towed if left on the street. Sergeant Moreno stated that at the scene, he did not search § 87(2)(b)'s vehicle other than when he leaned into the car to retrieve the knife. Sergeant Moreno added that Officer Lam did not search § 87(2)(b)'s vehicle either. At the station house, however, an inventory search of the vehicle was conducted. Sergeant Moreno did not know which officer or officers conducted this search.

Once at the station house, Officer Lam processed the arrest. Sergeant Moreno indicated that he hardly interacted with § 87(2)(b) at the station house. At one point, § 87(2)(b) walked past Sergeant Moreno and again asked him for his name and badge number. Sergeant Moreno again pulled out his nameplate and shield and told § 87(2)(b) “Look. It’s right here.”

NYPD Documents

Summons/Arrest for Incident and Disposition

- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of April 13, 2012, with regard to the incident.

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History

- This is the first CCRB complaint filed by § 87(2)(b)

Subject Officers CCRB History

- Officer Vincent Lam has been a member of the service for one year and there are no substantiated CCRB allegations against him (encl. 3).
- Sergeant Juan Moreno has been a member of the service for seven years and there are no substantiated allegations against him (encl. 2).

Conclusion

Identification of Subject Officer

Sergeant Moreno and Officer Lam acknowledged interacting with § 87(2)(b)

Allegations Not Pleaded:

§ 87(2)(g)

Investigative Findings and Recommendations

Allegation A: Discourtesy—SGT Juan Moreno spoke obscenely to § 87(2)(b)

Allegation B: Abuse of Authority—SGT Juan Moreno refused to provide his name and badge number to § 87(2)(b)

§ 87(2)(b) stated that Sergeant Moreno told him to “shut the fuck up” multiple times throughout their interaction at § 87(2)(b) and § 87(2)(b). § 87(2)(b) also alleged that Sergeant Moreno told him “I make the fucking law.” Sergeant Moreno and Officer Lam denied that these comments were ever uttered. Additionally, § 87(2)(b) alleged that Sergeant Moreno refused to provide his name and badge number upon requests to do so both at the scene of his arrest and inside of the 77th Precinct station house. Sergeant Moreno stated that he orally provided

his name and badge number and displayed his nameplate and shield to § 87(2)(b) However, Officer Lam did not hear § 87(2)(b) request Sergeant Moreno's name and badge number, and therefore did not hear Sergeant Moreno refuse to provide the aforementioned information.

§ 87(2)(g)

Therefore, it is recommended that **Allegations A and B** be closed as *unsubstantiated*.

Allegation C: Abuse of Authority—SGT Juan Moreno searched the car in which

§ 87(2)(b) **was an occupant.**

Allegation D: Abuse of Authority—PO Vincent Lam searched the car in which

§ 87(2)(b) **was an occupant.**

§ 87(2)(b) stated that after he was arrested, Sergeant Moreno and Officer Lam entered and searched his vehicle. § 87(2)(b) was sitting in the backseat of the RMP at this point, so he could not see what the officers were doing while inside, but they did open the rear doors of the vehicle and the rear hatch. Both Sergeant Moreno and Officer Lam deny ever searching § 87(2)(b)'s vehicle.

According to People v. Roger Belton 55N.Y.2d 49 (encl. 1A-K) a limited search of a vehicle is permissible as long as an occupant of the vehicle has been arrested and the circumstances of the arrest give reason to believe that the vehicle or its visible content may be related to the crime for which the arrest is being made. However, the case law is explicit in that the search must be limited, meaning areas like the trunk should not be compromised.

§ 87(2)(g)

As a result, it is recommend **Allegations C and D** be closed as *exonerated*.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date